

DRAFT — FOR ATTORNEY REVIEW ONLY
NOT FOR USE WITH GUESTS UNTIL APPROVED BY A TEXAS-LICENSED ATTORNEY

Memo to Reviewing Attorney

Prepared for: The Nauti Yacht LLC (owner) — boat charter operator on Lake Conroe, Montgomery County, Texas.

Purpose: A first-draft liability release / assumption-of-risk agreement for guests booking charters, plus notes on a separate regulatory item that may apply. This draft was assembled from publicly available Texas statutes and secondary legal commentary, organized around four points of Texas law:

- Express negligence doctrine — a waiver of a party's own future negligence is enforceable in Texas only if the intent to release negligence claims is stated in specific, unambiguous terms within the four corners of the document (*Ethyl Corp. v. Daniel Construction Co.*, 725 S.W.2d 705 (Tex. 1987)). Generic "release of all claims" language is not sufficient — the word "negligence" (or equivalent unambiguous language) must appear.
- Conspicuousness — the release language must be conspicuous: set apart from surrounding text (bold, larger font, all-caps, or a boxed/separate heading), typically near the signature line, so it cannot be said to have been buried in fine print.
- Gross negligence / willful or wanton misconduct / intentional acts cannot be waived in advance under Texas law, regardless of contract language. A waiver that purports to cover these is unenforceable as to those claims and could also undermine the enforceability of the rest of the document if not clearly carved out.
- Texas Recreational Use Statute, Civil Practice & Remedies Code Chapter 75 — limits landowner/occupier liability for recreational users of real property, but its protection is keyed to ownership/occupancy of real property and, for a for-profit operator, is affected by a statutory fee threshold (tied to prior-year ad valorem property taxes on the premises). Its applicability to a for-profit charter operating vessels from a marina on a public lake is uncertain and should not be relied on as a primary defense — please assess independently.

Also flagged below (Section 12): Texas Parks & Wildlife Code Chapter 31 and TPWD rules may separately require written and verbal safety briefings plus a signed passenger safety acknowledgment for a vessel operating as a "party boat," kept on file and producible to TPWD on request. This is distinct from — and in addition to — the liability release below.

Everything past this memo is placeholder/starting-point contract language, not final. Bracketed [ATTORNEY NOTE: ...] comments mark spots needing your specific judgment — particularly the minors clause, where Texas courts have limited a parent's ability to waive a child's own personal-injury claim (see, e.g., *Munoz v. II Jaz, Inc.*, 863 S.W.2d 207 (Tex. App.—Houston [14th Dist.] 1993, no writ); *Paz v. Life Time Fitness, Inc.*, 757 F. Supp. 2d 658 (S.D. Tex. 2010)).

RELEASE AND WAIVER OF LIABILITY, ASSUMPTION OF RISK, AND INDEMNIFICATION AGREEMENT

READ CAREFULLY — THIS AFFECTS YOUR LEGAL RIGHTS

The Nauti Yachti LLC — Lake Conroe, Montgomery County, Texas

This Release and Waiver of Liability, Assumption of Risk, and Indemnification Agreement ("Agreement") is entered into between The Nauti Yachti LLC ("Company," "we," "us") and the undersigned guest ("Guest," "I," "me"), on behalf of myself and every member of my party, in connection with a boat charter, watersports activity, or related excursion on Lake Conroe, Texas (the "Activity").

1. Assumption of Risk

I understand that boating and watersports activities carry inherent risks that cannot be eliminated regardless of the care taken by the Company. These risks include, but are not limited to:

- Capsizing, collision with other vessels, submerged objects, or the shoreline;
- Sudden or severe weather changes, including wind, lightning, and rough water;
- Falls, slips, and impact injuries on a moving or wet vessel deck;
- Injury from watersports equipment (tubing, wakeboarding, skiing, swimming, diving) including collision, drowning, or near-drowning;
- Mechanical or equipment failure;
- Injury caused by the action or inaction of other passengers or other watercraft operators, including the effects of alcohol consumption by any person aboard or on the water;
- Exposure to sun, heat, cold, and water-borne hazards.

I VOLUNTARILY AND KNOWINGLY ASSUME ALL SUCH RISKS, known and unknown, whether arising from the negligence of the Company or otherwise, and understand that participation is entirely voluntary.

2. Release of Claims — Express Negligence Acknowledgment

I EXPRESSLY RELEASE, WAIVE, AND DISCHARGE THE NAUTI YACHTI LLC, ITS OWNERS, MEMBERS, EMPLOYEES, CAPTAINS, AGENTS, AND CONTRACTORS (COLLECTIVELY, THE "RELEASED PARTIES") FROM ANY AND ALL CLAIMS, DEMANDS, OR CAUSES OF ACTION ARISING FROM THE RELEASED PARTIES' OWN NEGLIGENCE, INCLUDING PERSONAL INJURY, DEATH, OR PROPERTY DAMAGE ARISING OUT OF OR IN CONNECTION WITH THE ACTIVITY, TO THE FULLEST EXTENT PERMITTED BY TEXAS LAW.

[ATTORNEY NOTE: The paragraph above is drafted to satisfy Texas's express negligence doctrine by naming "negligence" specifically and setting the clause apart in bold/boxed conspicuous text. Please confirm placement, font size, and proximity to the signature line meet current Texas conspicuousness standards, and adjust the defined "Released Parties" to match the Company's actual legal structure and any captains/crew who should be named or covered as third-party beneficiaries.]

3. What Is NOT Released — Gross Negligence & Intentional Acts

This Agreement does not release, and Guest does not waive, any claim arising from the Released Parties' gross negligence, willful or wanton misconduct, or intentional acts. Under Texas law, liability for gross negligence and intentional misconduct cannot be waived in advance, and nothing in this Agreement is intended to do so.

4. Indemnification

To the extent permitted by Texas law, I agree to indemnify and hold harmless the Released Parties from any claims, losses, or expenses (including reasonable attorney's fees) arising from my own acts or omissions, or those of a minor in my care, during the Activity, except to the extent caused by the Released Parties' gross negligence or intentional misconduct.

5. Medical Treatment Authorization

In the event of injury or medical emergency during the Activity, I authorize the Company's crew to arrange or administer first aid and to seek emergency medical treatment on my behalf (or on behalf of a minor in my care) if I am unable to consent at the time, and I agree to be responsible for any resulting medical costs.

6. Participants Under 18 Years of Age

[ATTORNEY NOTE: TEXAS LAW LIMITS A PARENT'S ABILITY TO WAIVE A CHILD'S OWN FUTURE PERSONAL-INJURY CLAIM. THIS SECTION NEEDS YOUR SPECIFIC DRAFTING — THE LANGUAGE BELOW IS A STARTING POINT ONLY, LEANING ON PARENTAL INDEMNIFICATION AND ASSUMPTION OF RISK RATHER THAN A DIRECT RELEASE OF THE MINOR'S OWN CLAIM, WHICH TEXAS COURTS HAVE BEEN RELUCTANT TO ENFORCE.]

I certify that I am the parent or legal guardian of the minor(s) listed at booking, and I have full authority to consent on their behalf to their participation in the Activity. I acknowledge and assume, on behalf of the minor(s), the risks described in Section 1, and I agree to the indemnification obligations in Section 4 with respect to the minor(s)' own acts or omissions during the Activity.

7. Alcohol Acknowledgment

I understand that alcohol may be present or consumed by members of my party during the Activity at their own choice and risk, that Texas Parks & Wildlife boating-while-intoxicated laws apply on the water the same as on the road, and that the Company reserves the right to refuse service or end the charter early for any guest who is visibly intoxicated or behaving unsafely, with no refund owed for time lost as a result.

8. Photo, Video & Media Release (Optional)

[ATTORNEY NOTE: Confirm whether this should be a separate opt-in checkbox rather than bundled into the main release, since it is not a safety/liability term.]

I grant the Company permission to photograph or video record my charter and to use those images for marketing purposes (website, social media, advertising), without compensation to me, unless I notify the Company in writing before the charter that I decline this permission.

9. Governing Law & Venue

This Agreement is governed by the laws of the State of Texas, without regard to conflict-of-law principles. Any dispute arising from this Agreement or the Activity shall be brought exclusively in the state or federal courts located in Montgomery County, Texas.

10. Severability

If any provision of this Agreement is held unenforceable, the remaining provisions remain in full force and effect, and the unenforceable provision shall be modified to the minimum extent necessary to make it enforceable while preserving its original intent.

11. Entire Agreement

This Agreement, together with the Company's posted Terms & Cancellation Policy, constitutes the entire agreement between the parties regarding the Activity and supersedes any prior oral or written understanding.

12. Separate Item: TPWD Passenger Safety Acknowledgment (Not Part of This Release)

[ATTORNEY NOTE: Texas Parks & Wildlife Code Chapter 31 and related TPWD rules may require operators of a "party boat" (a vessel carrying passengers for hire, potentially including charters like this one depending on vessel type/capacity and how "party boat" is defined for this operation) to give each passenger a written and verbal safety briefing and obtain a signed passenger safety acknowledgment, retained by the operator and producible to TPWD on request, plus disclosure of whether a lifeguard is present. Please confirm whether this Company's vessels/operations meet the applicable definition, and if so, draft a short, separate Passenger Safety Acknowledgment Form distinct from this liability release — it serves a different purpose and TPWD may expect it in a specific form.]

Acknowledgment & Signature

I have read this entire Agreement, I understand it, and I sign it voluntarily. I understand that by signing I am giving up certain legal rights, including the right to sue the Released Parties for their own negligence, except as expressly preserved in Section 3 above.

Guest

_____ Date: _____
Print Name Signature

Parent / Legal Guardian (required only if a minor is included in this booking)

_____ Date: _____
Print Name Signature

Company Representative

_____ Date: _____
Print Name Signature

Draft prepared for attorney review — The Nauti Yacht LLC — not a final or binding legal document.